KASHRUT COURSE AT TIFERET EYAL

Should a Jew Be Vegan? The Torah on Eating Meat

Kashrut Course, Part 2

Series: Kashrut, a six-part course at Tiferet Eyal, Hendon **Shiur:** Part 2 of the six-part Kashrut course, given by Dayan Daniel Kada at Tiferet Eyal, Tuesday 21 May 2019

These notes are based on an automatic transcript of the recording.

Introduction: Does the Torah Have an Opinion on Veganism?

Before moving on to the practical halachot of kashrut in the coming weeks (including, later, eating out in vegetarian and vegan restaurants), the Rabbi devoted this shiur to a philosophical question. Can veganism be reconciled with the Torah? More than that: does the Torah have an opinion about it? Is it for it, against it, or neutral?

What is veganism?

- A **vegetarian** abstains from meat, chicken and fish.
- A **vegan** goes further and abstains from dairy and other animal products.
- **Veganism** is the philosophy behind it. Some people are vegan simply for their health. Veganism as a principle is defined by the Vegan Society as:

A way of living which seeks to exclude, as far as is possible and practicable, all forms of exploitation of, and cruelty to, animals for food, clothing or any other purpose.

The question of the evening is the Torah's view of that philosophy, not of any individual's diet.

The obvious starting point

Asked what the Torah's default position would be, the class answered that eating meat is clearly acceptable. The Rabbi agreed this is the obvious starting point:

- **Sefer Vayikra**, which we were reading at the time, is full of **korbanot**, sacrifices. The role of the Kohen was to slaughter animals.
- There is a mitzvah to eat **meat on the Chagim**.
- The Shulchan Aruch says one should enjoy **Shabbat with meat, fish and delicacies**.
- **Pesach Sheni**, two days earlier. The Rabbi took a moment to correct a common misconception: Pesach Sheni is **not a "second Pesach."** Someone who did not eat matzah on Pesach does not make it up a month later. It is a second chance only to bring the **Korban Pesach**, the Pesach lamb, for those who could not bring it at the time. The whole festival of Pesach was historically oriented around that lamb.

So killing animals seems to be part and parcel of the Torah. "However... things aren't as simple as you think they may be."

Part 1: Covering the Blood: A Loaded Metaphor

The core verse of the evening is from **Parashat Acharei Mot** (Vayikra 17:13), read two weeks before:

> אֲשֶׁר יָצוּד צֵיד חַיָּה אוֹ עוֹף אֲשֶׁר יֵאָכֵל וְשָׁפַךְ אֶת דָּמוֹ וְכִסָּהוּ בֶּעָפָר
> One who hunts and traps a beast or bird that may be eaten shall pour out its blood and cover it with earth.

This is the source of the mitzvah of **kisui hadam**, covering the blood after slaughtering a wild animal or bird. It is one of the 613 mitzvot, and one makes a berachah on it: *asher kideshanu bemitzvotav vetzivanu al kisui hadam*.

Read on its own, the verse sounds innocent. But in English, what do we mean when we say someone is "covering up the blood"? Murder.

"And cover his blood"

There is only one other place in the Torah with this phrase: **Yosef and his brothers**. When the brothers plan to kill Yosef, Yehudah says (Bereshit 37:26):

> מַה בֶּצַע כִּי נַהֲרֹג אֶת אָחִינוּ וְכִסִּינוּ אֶת דָּמוֹ
> What gain is there if we kill our brother and cover up his blood?

That is clearly talking about murder. The prophet **Yeshayahu** (26:21) uses the same language for Hashem's judgement:

> וְגִלְּתָה הָאָרֶץ אֶת דָּמֶיהָ וְלֹא תְכַסֶּה עוֹד עַל הֲרוּגֶיהָ
> The land shall reveal its blood and shall no longer cover its slain.

"And he shall pour out its blood"

Now look at the other phrase in the verse: ***veshafach et damo***, he spills its blood. **Yechezkel** (22:4) uses it of murder:

> בְּדָמֵךְ אֲשֶׁר שָׁפַכְתְּ אָשַׁמְתְּ
> By the blood that you have shed, you have become guilty.

So the Torah, when it describes shechita, uses **two loaded metaphors**: *shefichat damim*, spilling blood, and *kisui be'afar*, covering in earth. Both appear elsewhere in the context of murder. It is as if the Torah is saying: yes, you may slaughter, but **there is something like a crime going on here**. Kill the animal if you wish, but cover up the blood. "Cover over your sin." This is a mixed message, and the rest of the shiur tries to understand it.

Part 2: From Adam to Noach: A Change in the Law

"We're all used to eating meat and chicken... What we need to recognise is it wasn't always the case, and it could be it won't be the case in the future. So all those who are praying very hard for Mashiach, you have to know what comes with it."

Adam: only plants

Before creating Adam, Hashem says (Bereshit 1:29):

הִנֵּה נָתַתִּי לָכֶם אֶת כָּל עֵשֶׂב זֹרֵעַ זָרַע... וְאֶת כָּל הָעֵץ אֲשֶׁר בּוֹ פְּרִי עֵץ זֹרֵעַ זָרַע לָכֶם יִהְיֶה לְאָכְלָה I have given you every seed-bearing plant... and every tree that has seed-bearing fruit; they shall be yours for food.

There is no mention of meat, birds or even fish. The Midrash comments: **Hashem did not create His creatures in order that they should be killed.**

Noach: meat is permitted

After the flood, Noach brings sacrifices, and Hashem says (Bereshit 9:3):

כָּל רֶמֶשׂ אֲשֶׁר הוּא חַי לָכֶם יִהְיֶה לְאָכְלָה כִּירֶק עֵשֶׂב נָתַתִּי לָכֶם אֶת כֹּל Every moving thing that lives shall be food for you; as the green plants, I have given you everything.

We read Bereshit and Noach a week apart and forget the time in between. The flood came **1,656 years** after creation. For 1,656 years, humanity ate only plants. (Someone in the class pointed out that people lived seven, eight, nine hundred years in that era. The Rabbi acknowledged the point: obviously human bodies could live on such a diet.)

Reward or concession?

- **The Ramban** reads the permission as a **reward** for Noach's sacrifice: humanity had progressed.
- **Rav Yosef Albo** (15th-century Spanish philosopher) reads it as a **concession**. Hashem's original intention was that humans live on plants alone. After the flood, He "as it were changed His mind."

Kayin and Hevel: the first human sacrifice

Why the change? Albo points back to **Kayin and Hevel**. Hevel brought an animal offering and it was accepted; Kayin brought a vegetable offering and it was not. At that time there was no clear line between killing animals and killing humans: all living creatures were off limits. Kayin saw his brother kill an animal for Hashem and be accepted, and concluded that **in the context of sacrifice, one may kill any living creature**. According to Albo, Kayin's killing of Hevel was not plain murder. **It was the first human sacrifice.**

"It sounds crazy because we're not used to such a concept, but it's a very interesting theory, and if you think about it, it makes sense." Add to this the violence, the *chamas*, of Noach's generation. Hashem saw that people needed an outlet and a **clear distinction between animals and humans**. So He told Noach: now you may kill animals, but **not human beings**.

Reading the verses together

Look at the next two verses:

אַךְ בָּשָׂר בְּנַפְשׁוֹ דָמוֹ לֹא תֹאכֵלוּ (9:4) But flesh with its life, its blood, you shall not eat.

The Rabbi gave two readings: do not eat the blood (hence salting and removing blood), and **ever min hachai**, do not eat a limb before the animal is fully dead. Dead flesh you may have; the blood, which gave the creature life, you may not.

שֹׁפֵךְ דַּם הָאָדָם בָּאָדָם דָּמוֹ יִשָּׁפֵךְ כִּי בְצֶלֶם אֱלֹהִים עָשָׂה אֶת הָאָדָם (9:6) Whoever sheds the blood of man, by man shall his blood be shed, for in the image of God He made man.

So three steps: (1) you may eat animals; (2) not their blood; (3) and do not kill human beings, because of the **tzelem Elokim**. Two ways to read this:

1. Humans and animals are essentially similar, except that humans bear the image of God.

2. Humans are fundamentally different from animals.

The Rabbi's view is that both are true. **We are part animal and part soul.** Our bodies have animal drives, and in that sense we are like animals. But we also have the *neshamah*, the image of God, and there is a constant struggle between the two.

Back to covering the blood

Now return to Acharei Mot. The very next verse after covering the blood (Vayikra 17:14) says:

כִּי נֶפֶשׁ כָּל בָּשָׂר דָּמוֹ בְנַפְשׁוֹ הוּא .For the life of all flesh is its blood

This is the same language Hashem used to Noach. The Rabbi's reading: Hashem made a concession to Noach, but **do not let it become just an act of killing**. You are spilling blood, so cover it. Be a little embarrassed by what you have done. And we make a berachah, because this is the situation we find ourselves in after the Ark, and it is permitted.

So there is a sharp distinction between eating salad and vegetables and eating meat. Meat is allowed, but perhaps it is **not the ideal**. "If a person has the same choice what to eat, then according to what we've learned so far, it would be preferred for him to go to the vegetables."

Part 3: Is Vegetarianism Part of the Final *Tikkun*?

How old is the vegetarian movement? The class guessed 40 or 50 years. The Rabbi offered his own "humble idea."

At the beginning of Bereshit there are **three punishments**:

Punishment	Then	Today
Adam: by the sweat of your brow	Hard physical labour	Since the Industrial Revolution, very few men work by the sweat of their brow
Chavah: pain in childbirth	Women often died in childbirth	Far less pain and danger: epidurals, modern medicine
Migdal Bavel: the confusion of languages	Humanity scattered	Google Translate: you can understand a document in a language you do not know

The world is constantly moving towards a **final tikkun**, a final rectification. The Messianic era is not something that arrives from one day to the next; it is a process, and change must be incremental. All these punishments are slowly being undone. **Perhaps the growth of vegetarianism and veganism is part of the same process**, a return to the pre-Noach ideal. Ten or twenty years ago it was far less common; who knows where it will be in another twenty or thirty. (He added in passing that the move towards the equality of men and women can be traced back to Adam and Chavah before the sin in the same way.)

Part 4: Rav Kook and Rav Soloveitchik

Rav Kook

Rav Avraham Yitzchak HaKohen Kook, Chief Rabbi of Palestine before the State of Israel, was "an unbelievable, great, really an amazing thinker, well ahead of his times." He wrote an essay on vegetarianism and argued that **ideally and ideologically we should all be vegetarians**. He himself abstained, eating only a little meat on Yom Tov.

But he did **not promote it in practice**, for two reasons:

1. **Wrong priorities.** In his time there were far bigger things in the picture. Focusing on something "as minute as this" would not have been right.
2. **Blurring the line between humans and animals.** That is exactly what happened with Kayin.

The korbanot will be flour offerings

What, then, of all the sacrifices? Rav Kook said the korbanot too were a **concession**. He cited a verse we say every day after the *ketoret* in Shacharit and Minchah (Malachi 3:4):

> Then the offering of Yehudah and **וְעָרְבָה לַה' מִנְחַת יְהוּדָה וִירוּשָׁלָ͏ִם כִּימֵי עוֹלָם וּכְשָׁנִים קַדְמֹנִיּוֹת**
> .Yerushalayim shall be pleasing to Hashem, as in the days of old

A ***minchah*** is a **flour offering**. Vayikra has animal offerings, bird offerings and *menachot*, and there is a whole tractate called Menachot. From this verse, Rav Kook argued, in the future, with Mashiach and the rebuilt Beit HaMikdash, **there will only be flour offerings**, not animal sacrifices. The Rabbi noted that he does not explain what would happen to the Korban Pesach, and that this view is not unanimous; others hold that animal sacrifices will return in full. But it shows how far Rav Kook took his ideology. He even explained **sha'atnez** through it: not mixing wool (from the animal kingdom) with linen (from the plant kingdom).

Rav Soloveitchik

Rav Yosef Dov (Joseph B.) Soloveitchik, grandson of Rav Chaim of Brisk, was a towering talmid chacham who was also learned in science and philosophy. Others after him described his approach as Modern Orthodox. According to the Rabbi, he went further than Rav Kook: he was a **full vegetarian** and held that it should actually be practised, not just held as an ideal.

His answer on the korbanot: out of gratitude for life, a person should want to give everything back to Hashem. That is how he explains the **Akeidah**. Avraham was so overwhelmed with gratitude and love that he wanted to offer life back to God. Hashem taught him that **we do not do this**: human sacrifice is forbidden. So Avraham brought a ram instead, to express his love through it.

Animal sacrifice is therefore a **necessary evil**. Really we should be giving ourselves to God; we cannot, so the best we can do is offer animals. But this belongs **only within the context of avodah**, the service in the Temple, as a way to build a relationship with Hashem. Outside of that, it does not apply. So for Rav Soloveitchik there is no contradiction between being pro-vegetarian and having animal sacrifices in the Beit HaMikdash.

Part 5: Must We Eat Meat on Yom Tov?

The Rabbi posed a test case. A prospective convert must accept all 613 mitzvot. What if they say, in full disclosure, "I'm vegetarian. I won't eat meat on the Chag." Can they be converted?

The answer depends on whether there is an **obligation** to eat meat on Yom Tov. The mitzvah to eat meat comes from ***simchat Yom Tov***, rejoicing on the festival:

- **In Temple times**, when animals were offered, there was an obligation to eat meat on the festivals.
- **Today**, the main fulfilment of simchat Yom Tov is **with wine**, not meat. Eating meat is a mitzvah according to some opinions, but **not an obligation**.

So a vegetarian convert poses no problem.

Practical point for Shavuot

That year Shavuot came straight after Shabbat, giving three days of Shabbat and Yom Tov. People ask whether they need meat at every meal. The answer: **have meat at one meal**, since there is a mitzvah according to some opinions, but there is no obligation to do so at every meal. This also resolves the tension between the mitzvah of meat and the custom of eating dairy on Shavuot.

Conclusion

The Rabbi ended with a disclaimer: "I've given this whole shiur as if I'm a vegetarian myself. I'm not. I aspire to be this one day." He had presented one side. There are others who hold that full animal sacrifices will return, and some who even think vegetarianism is wrong, since it seems to imply the Torah's sacrifices were wrong. He had tried to show that they need not contradict each other.

What the shiur showed:

1. When the Torah describes slaughter, it uses **loaded metaphors** of murder: spilling blood and covering it up. The Torah is not saying you are doing something wrong. It is saying: **remember, you are killing a soul, not cutting down a tree.**
2. Before Noach, humans were **not allowed to eat meat**. Afterwards they were, as a concession.
3. **Rav Kook and Rav Soloveitchik**, great Hachamim of their generations, were pro-vegetarian and saw no contradiction with the korbanot or with meat on Yom Tov.

Why we have become numb to it

In the old days you saw the shechita, or at least your mother was involved in kashering the meat and removing the blood. Today you buy a packet, put it in the pot and onto your plate, and forget the whole process it has been through, the blood spilled and the pain the animal went through.

Of course we're allowed to eat it, and it's fine to eat it. We can enjoy ourselves. But ultimately there seems to be some aspiration that one day we'll be aiming towards a more refined state.

Several people who stopped eating meat told the Rabbi they feel much better and less heavy, "because at the end of the day you're ingesting other life into you." Vegetarianism, he concluded, is compatible with Torah, and perhaps even the Torah's will: that the world will eventually be refined enough that we will not need to kill animals to satisfy our desires.

Next week: the halachot of **meat and milk**, beyond the basics: what happens if something gets mixed in, the one-in-sixty rule, children, how long to wait, and more.

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